



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 30 1994

DOT-E 10507
(FIRST REVISION)

1. PVS Technologies, Incorporated, Detroit, Michigan (formerly PVS Chemicals Incorporated), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to authorize tank car tanks loaded with chlorine, a Division 2.3, to remain standing with unloading connectors attached, subject to the limitations and special requirements specified herein. This exemption authorizes tank cars loaded with chlorine to be remotely monitored and attached to transfer connections during the unloading process and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on PVS Technologies, Incorporated's, application of dated January 26, 1993, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as a Division 2.3.

PROPER SHIPPING NAME (49 CFR 172.101). Chlorine.

5. REGULATION AFFECTED. 49 CFR Part 107, Appendix B, Subpart B; 174.67(i) and (j).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packagings prescribed are DOT Specification 105A500W tank car tanks stencilled either DOT 105A300W or 105A500W.

b. A copy of the Chlorine Institute Manual and the Chlorine Institute's Pamphlets 6, 57, and 66 must be on file at each location that uses this exemption for information on employee training and safety, emergency measures, and recommended procedures for the installation of piping systems and emergency shut off facilities, and procedures to be followed during unloading operations.

c. An employee who is familiar with the nature and properties of the material must be made responsible for unloading.

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d. The employee responsible for unloading must be instructed on the procedures to be followed during unloading and in the event of an emergency, has the authority and ability to halt the flow of product and take emergency actions.

e. When an electronic or mechanical monitoring device is used, the device must be capable of immediately halting the flow of product or alerting an employee responsible for unloading in the event of an emergency.

f. The electronic or mechanical monitoring device must provide immediate notification of any malfunction to the person responsible for unloading. In the case of malfunction, the device will no longer be relied upon, and instead the individual responsible for unloading will constantly observe the unloading process.

8. SPECIAL PROVISIONS.

a. Any manually operated switch providing access to the track on which the equipment is located must be lined against movement to that track and locked with a non-railroad effective locking device.

b. A derail (one that is capable of restricting access to that portion of track within the area on which the tank car tanks are located) must be positioned at least 50 feet from the end of the equipment to be protected by the caution sign. The derail must be locked in the derailing position with a non-railroad effective locking device by the employee performing the unloading/loading operation.

c. Written safety procedures must be on file at each location that uses this exemption and contain at least the following:

- monitoring of the transfer process [see paragraphs 7(c), (d), (e) and (f)]
- employee safety
- unloading/loading procedures
- movement of tank cars adjacent to unloading/loading racks
- testing and maintenance of system components
- emergency measures (see Section 4 of the Chlorine Institute Manual)

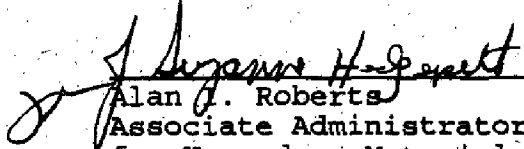
d. The marking requirements of Appendix B to Subpart B of Part 107 do not apply to tank cars unloaded under this process.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. November 1, 1996.

Issued at Washington, D.C.

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Alan J. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.